

The Netherlands 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in the Kingdom of the Netherlands, including the autonomous countries of Aruba, Curaçao, and Sint Maarten, during the year.

Significant human rights issues included credible reports of: serious restrictions on freedom of expression and media freedom, including violence or threats of violence against journalists; and crimes, violence, or threats of violence motivated by antisemitism.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the

part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The law provided for freedom of expression, including for members of the press and other media, and the governments throughout the kingdom generally respected this right. In the Netherlands, an independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members. In the autonomous countries of Aruba, Curaçao, and Sint Maarten, independent media struggled financially due to the small markets served. Low revenues in print, broadcast, and online media, and the accompanying low wages in the sector, made it difficult to attract trained or experienced journalists and editors, ultimately hindering objective reporting principles. Print and radio broadcast media in Aruba suffered from partisanship more than the other islands. No government action specifically limited freedom of expression in traditional or new media outlets.

Restrictions on “hate speech” applied to media outlets, but media outlets were very rarely accused of engaging in this behavior, so restrictions were correspondingly only occasionally enforced. It was a crime to “verbally or in writing or image deliberately offend a group of persons because of their race, their religion or beliefs, their sexual orientation, or their physical,

psychological, or mental disability.” The statute in the Netherlands did not consider statements targeting a philosophy or religion, as opposed to a group of persons, as criminal hate speech. In the Netherlands, there were restrictions on the sale of the book *Mein Kampf* and the display of the swastika symbol with the intent of referring to Nazism.

A law went into effect on October 1 prohibiting Holocaust denial and denial or trivialization of war crimes, crimes against humanity, and genocide. According to a press release from the government, the change implemented EU obligations to explicitly criminalize certain forms of publicly condoning, denying, or substantially trivializing genocide, crimes against humanity, and war crimes. Condoning, denying, or trivializing these international crimes could be punishable by a maximum prison sentence of one year.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

In 2023, the government fined broadcaster Unheard Netherlands, which was admitted into the public broadcasting system in 2022, for the third time for breaking the public broadcasting sector’s journalistic code of ethics by spreading false information and not differentiating between fact and opinion. In April 2023, the Dutch Foundation for Public Broadcasting (NPO) – the umbrella organization for broadcasters – asked State Secretary for Culture and Media Gunay Uslu to withdraw the outlet from the public

broadcasting system. Minister Uslu in November 2023 denied the NPO's request, emphasizing the importance of government noninterference in content decisions.

Subsequently, in March, the NPO retracted two out of three fines previously imposed on Unheard Netherlands after concluding the grounds for two of the fines were insufficient. This action sparked discussions about the enforcement of journalistic integrity and the role of public broadcasters in maintaining standards.

Several crime reporters and media outlets in the Netherlands faced threats, violence, and intimidation from criminal gangs seeking to inhibit freedom of expression.

In 2023 (the latest data available), journalists reported 218 incidents, a slight increase over the 198 incidents in 2022, to PersVeilig, a joint initiative of the Dutch Association of Journalists, Dutch Association of Editors in Chief, national police, and Public Prosecutor's Office. Most cases involved threats, often verbal or on social media. There were also instances of physical violence, stalking, intimidation, and discrimination.

Certain news themes, such as the Israel-Hamas conflict, appeared to influence the type of incidents. According to PersVeilig, emergency- or crime-scene photographers and women journalists were particularly vulnerable.

The use of someone else's personal data with the intent to intimidate – also known as doxing – was criminalized starting January 1. Doxing was previously widely used by criminal organizations and antigovernment individuals to intimidate journalists, witnesses, activists, and other critics. Police made arrests and the Public Prosecution brought charges in at least two cases since the law came into effect.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for public- and private-sector workers to form or join independent unions of their own choosing without prior governmental authorization or excessive requirements. The law provided for collective bargaining. Unions could conduct their activities without interference.

The law prohibited antiunion discrimination and retaliation against legal strikers. It required workers fired for union activity to be reinstated.

Workers were required to report their intention to strike to their employer at least two days in advance.

The governments effectively enforced applicable laws protecting freedom of association, collective bargaining, and the right to strike. Penalties were commensurate with those for other laws involving denials of civil rights, such as discrimination. Penalties were regularly applied against violators in

the Netherlands; there was insufficient data to assess the frequency of application in the Dutch Caribbean. Throughout the kingdom, the governments and employers generally respected the freedom of association and the right to bargain collectively.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

Dutch law provided for a minimum wage for all sectors. In the Netherlands the minimum wage for an adult older than 21 was above the poverty line and considered sufficient for a single-person household but inadequate for a couple with two children, according to the government. According to the Federation of Dutch Trade Unions, the largest union organization in the Netherlands, it was barely sufficient also for a single person.

In Aruba, Curaçao, and Sint Maarten, the monthly minimum wage was considered sufficient to ensure a modest standard of living, according to the three governments.

In the Netherlands, the law did not establish a specific number of hours as constituting a full workweek, but most workweeks were 36, 38, or 40 hours

long. Collective bargaining agreements or individual contracts, not law, regulated overtime. The legal maximum workweek was 60 hours; however, with some exceptions, workers were limited to an average of 55 hours per week during a four-week period or 48 hours per week during a 16-week period. Persons who worked more than 5.5 hours per day were entitled to a 30-minute rest period, and it was mandatory not to work during at least 11 hours after a workday.

Most violations in the Netherlands were in temporary employment agencies that mainly hired workers from Eastern Europe, particularly in the construction, agriculture, and transportation sectors, without paying the minimum wage and while charging exorbitant rates for housing.

Occupational Safety and Health

In the Netherlands, the government set occupational safety and health (OSH) standards across all sectors. OSH standards were appropriate for the main industries and frequently updated. In Aruba, Curaçao, and Sint Maarten, the governments proactively identified unsafe conditions and responded to workers' OSH complaints. Workers could remove themselves from situations endangering health or safety without jeopardy to their employment. The Ministries of Labor reviewed and updated the guidelines and routinely visited businesses to ensure employer compliance. The Labor Inspectorate proactively identified unsafe conditions of work through public reports and inspections and operated an anonymous-optional web and

phone platform for reporting potential unsafe conditions. Dutch law provided protections from retribution or dismissal for workers who reported unsafe conditions or refused to work in unsafe conditions. The Labor Inspectorate's detailed annual report highlighted sectors and situations with high incidence of unsafe conditions; for instance, the most recent report highlighted solar-panel installation as a regular source of unsafe working conditions and safety violations.

Wage, Hour, and OSH Enforcement

The governments effectively enforced wage, hour, and OSH laws. Penalties for violations were commensurate with those for similar crimes, such as fraud and negligence.

The Netherlands Labor Authority was responsible for enforcement of labor laws across all sectors, including the informal economy. The inspectorate could order companies to cease operations due to safety violations or shut down fraudulent temporary employment agencies that facilitated labor exploitation. The number of labor inspectors who had the authority to make unannounced inspections and initiate sanctions was sufficient to enforce compliance.

The informal economy was estimated to contribute approximately \$110 billion – or 10.8 percent – to the Netherlands' GDP. According to the International Monetary Fund, recent labor force surveys in Curaçao

suggested strong growth in the informal sector, likely driven by post-COVID-19 demand in tourism and the influx of working-age migrants from Venezuela. Given the relatively small size of Curaçao's population and seasonal economy, estimating the exact proportion of formal to informal economic activity was difficult. In 2022, the last available data, a report by the Aruba Department of Economic Affairs, Commerce, and Industry indicated the average size of the informal economy equaled 19.7 percent of GDP in the last decade. In Sint Maarten, which was rebuilding after the successive shocks of Hurricane Irma in 2017 and the COVID-19 pandemic, some estimates placed the informal economy as high as 40 percent of GDP.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The governments generally observed these requirements.

A prosecutor or senior police officer was required to order the arrest of any person unless the person was apprehended at the site of an alleged crime.

Arrested persons had the right to appear before a judge, usually within one day, and authorities generally respected this right. Authorities informed detainees promptly of charges against them. The law also allowed persons to be detained on a court order pending investigation.

In terrorism-related cases in the Netherlands, the examining magistrate could initially order detention for 14 days on the lesser charge of “reasonable suspicion” rather than the “serious suspicion” required for other crimes.

There was no bail system. Detainees could request release asserting there were no grounds to detain them or because of other more pressing matters. Authorities frequently granted such requests. The law provided suspects the right to consult an attorney. The Netherlands’ and Curaçao’s law granted all criminal suspects the right to have their lawyers present at police interrogation. In Aruba, Curaçao, and Sint Maarten, a criminal suspect was entitled to consult a lawyer prior to the first interview on the substance of the case. In the Netherlands and Curaçao, in cases involving children, a lawyer could be present during interviews with authorities but could not actively participate.

d. Violations in Religious Freedom

See the Department of State’s annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, and there were no credible reports government officials employed them. Allegations of excessive force by police and resulted in immediate investigation by the National Criminal Investigation Department, an independent body within the Ministry of Justice and Security.

b. Protection of Children

Child Labor

In the Netherlands, the law prohibited all the worst forms of child labor. The government grouped children into three age categories for purposes of employment: 13 to 14; 15; and 16 to 17. Children in the youngest group were only allowed to work in a few light, nonindustrial jobs. As children became older, the scope of permissible jobs and hours of work increased,

and fewer restrictions applied. The law prohibited persons younger than 18 from working overtime, at night, or in hazardous situations. Hazardous work differed by age category. For example, children younger than 18 were not allowed to work with toxic materials, and children younger than 16 were not allowed to work in factories. Holiday work and employment after school were subject to strict rules set by law. The government effectively enforced applicable laws, and penalties were commensurate with those for analogous crimes. Penalties were regularly applied against violators. There were no confirmed reports during the year of the worst forms of child labor, although the presence of child labor was noted in supply chains of four Dutch chocolate and cocoa products derived from beans harvested in Ghana and Cote d'Ivoire.

Aruba's law prohibited all the worst forms of child labor. The minimum age for employment was 15, but rules differentiated between "children," who were younger than 15, and "youngsters" or "youth," who were between the ages of 15 and 18. Children older than 13 who had finished elementary school could take apprenticeships so long as no tasks were dangerous or physically or mentally demanding as defined by law. The government effectively enforced the applicable laws, and penalties were commensurate with those for analogous crimes. Penalties were regularly applied against violators. There were no confirmed reports of the worst forms of child labor during the reporting period.

Curaçao's law prohibited all the worst forms of child labor. The island's minimum age for employment was 15, but rules differentiated between "children," who were younger than 15, and "youngsters" or "youth," who were between the ages of 15 and 18. Children older than 13 who had finished elementary school could take apprenticeships so long as no tasks were dangerous or physically or mentally demanding as defined by law. The government effectively enforced the applicable laws, and penalties were commensurate with those for analogous crimes. Penalties were regularly applied against violators. The penalty for violations was a maximum four-year prison sentence, a fine, or both. There were no confirmed reports of the worst forms of child labor during the reporting period.

Sint Maarten's law prohibited all the worst forms of child labor. In Sint Maarten the law prohibited children younger than 14 from working for wages. Special rules applied to schoolchildren ages 16 and 17. The law prohibited persons younger than 18 from working overtime, at night, or in activities dangerous to their physical or mental well-being. Penalties ranged from fines to imprisonment and were adequate to deter violations. The government effectively enforced the law. Penalties were regularly applied against violators.

Child Marriage

The legal minimum age for marriage was 18, and this requirement was effectively enforced by the governments. In the Netherlands and Aruba,

there were two exceptions: if the persons concerned were older than 16 and the girl was pregnant or had given birth, or if the minister of justice and security in the Netherlands or the minister of justice in Aruba granted a dispensation based on the parties' request.

c. Protection to Refugees

The governments cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The laws on asylum varied in different parts of the kingdom. In the Netherlands, the law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. The Dutch government again experienced case overload in the summer as the asylum system reached capacity, with more than 19,250 first-time asylum claims reported through July. Initial processing of recent arrivals took more than three months, instead of the two weeks prescribed in government policy documents. Asylum adjudications routinely took 18 months, instead of the six-month target. Government efforts to deal with overcrowding were hampered by a shortage of shelters, especially from municipalities.

In July, the Council of State criticized the Immigration and Naturalization Service (IND) for its strict framework in assessing asylum seekers from quasi-safe countries and directed the Ministry of Justice and Security and the IND to explicitly consider the “individual circumstances of a foreigner from a country experiencing arbitrary violence due to armed conflict” when deciding whether to grant asylum. This change meant asylum seekers at personal risk, such as due to their disability or profession, had a better chance of receiving asylum. Previously, the IND assessed individual circumstances first and then the situation in the country of origin, often neglecting how personal factors affected safety.

In June, the Administrative Jurisdiction Division of the Council of State ruled the State Secretary for Justice and Security lacked legal authority to reject asylum applications when applicants failed to attend a scheduled interview without justification. Third-country nationals who fled Ukraine to the Netherlands were officially no longer entitled to shelter and a living allowance in the country after a Council of State ruling revoking the right of protection went into full effect April 2. This group of refugees initially held the same status as Ukrainian war refugees, but this status expired on March 4, and individuals were required to leave by April 2. The District Court in Amsterdam, however, referred six appeals cases to the European Court of Justice (ECJ) on March 29, leading to the Council of State allowing the six persons in question to remain in the country until the ECJ made a final ruling.

In March, the Council of State ruled the state secretary for justice and security was permitted to continue transferring asylum seekers to Belgium under the European Dublin Regulation. The court found insufficient evidence to suggest that such transfers would result in human rights violations for the individuals concerned in Belgium.

Authorities in Aruba, Curaçao, and Sint Maarten considered most Venezuelan arrivals to be economic migrants rather than asylum seekers or refugees and thus ineligible for protection under their respective immigration law. Between 2019 and 2023, 17,000 Venezuelan migrants relocated to Aruba and Curaçao. Aruba was an island with a population of approximately 108,000, while the population of Curaçao was approximately 156,000. A very small number of Venezuelans moved to Sint Maarten in the same period. These Venezuelan migrant population estimates consisted of both officially registered and undocumented persons.

According to the Dutch state secretary's office, the Aruban Ministry of Labor, Employment and Integration denied asylum to approximately 98 percent of Venezuelan migrants who sought protection, but in most instances did not execute deportations after cases were adjudicated, although a small number were repatriated to Venezuela.

Sint Maarten and Curaçao immigration laws did not provide for asylum or refugee status, and neither island had an official asylum policy. Curaçao, however, followed an international protection procedure based on the

principle of nonrefoulement. Both Curaçao and Sint Maarten offered humanitarian residence permits as a temporary measure precluding deportation or refoulment.

In April, the Dutch state secretary for kingdom relations raised concern that in Curaçao, detained migrants were routinely imprisoned without legal representation, and parents were separated from their children. The Curaçao government subsequently amended its policy to allow undocumented and unaccompanied children to stay with family members already present on the island.

The Aruban government had an established system for providing protection to refugees.

Resettlement

In the Netherlands the government accepted up to 500 refugees for resettlement through UNHCR.

The Dutch government announced its participation in the EU 2024-2025 resettlement and humanitarian admission program, agreeing to resettle a total of 2,000 refugees over a two-year period, in addition to the UNHCR commitment. This commitment was divided into two parts: 1,000 refugees would be resettled based on the national quota, while another 1,000 would be admitted under the framework of the 2016 EU-Turkey Agreement.

d. Acts of Antisemitism and Antisemitic Incitement

The Reform Jewish Congregation, the largest Jewish community in the Netherlands, estimated the Jewish population in the Netherlands at 40,000 to 50,000.

Police registered 880 cases of antisemitism in 2023, compared with 549 the previous year. The number of cases of antisemitism involving violence or threats also increased over this period; police registered 43 cases of violent antisemitism in 2023, compared with 28 in 2022. In 80 of the cases registered by police in 2023, antisemitism was accompanied by threats, compared with 54 in 2022. The Public Prosecution Services recorded 181 cases of antisemitism as the basis for discrimination in 2023, compared with 94 cases in 2022. Antisemitism monitor Center for Information and Documentation Israel reported instances of antisemitism increased in the weeks and months following the October 2023 Hamas terrorist attacks in Israel and subsequent Israeli government response.

The Dutch penal code did not specifically criminalize antisemitism, but it criminalized discrimination and hate speech, including speech inciting hatred based on religion; the government enforced those laws effectively.

On March 10, the opening of the Dutch National Holocaust Museum was marred by the audible antisemitic chants of some 2,000 protesters nearby demonstrating against the presence of Israeli President Isaac Herzog.

Protesters were kept less than 65 feet away from the museum and synagogue locations, and attendees were delayed in arriving at the museum due to protesters. The protests eventually turned violent, with protesters throwing items, climbing atop a police van, and defacing another police van; 13 protesters were arrested.

On the evening of November 7 and early hours of November 8, groups of pro-Palestinian activists, predominantly Moroccan, chased and assaulted Israeli and Jewish supporters of a visiting Israeli soccer team, Maccabi Tel Aviv, throughout Amsterdam and Amstelveen in a spasm of violence that was termed a “Jew hunt” in internal social media communications by the perpetrators. Six individuals were hospitalized and 62 suspects were arrested. Tensions between Israeli fans and pro-Palestinian groups began on November 6 after Israeli fans assaulted a cab driver and sang songs glorifying the killing of Arabs and destruction of Gaza. The Amsterdam mayor declared a state of emergency and the government convened an emergency meeting to discuss the violence, which was broadly described as antisemitic.

Protests, particularly at Dutch universities, against the Israeli government and Israeli military operations in Gaza and the West Bank routinely included antisemitic chants, tropes, and imagery. Jewish organizations and student groups reported students felt unsafe on campuses, prompting some students to withdraw from universities or from student life.

Dutch government ministers regularly met with the Jewish community to discuss appropriate measures to counter antisemitism, and they publicly condemned high-profile incidents of antisemitism, particularly in the aftermath of the October 2023 Hamas attacks.

The national coordinator on antisemitism based its work on the Work Plan for Combating Antisemitism 2022-2025, which included combating online antisemitism and cherishing Jewish life.

The Jewish populations in the Dutch Caribbean were small and there were no reports of antisemitic incidents.

For further information concerning incidents of antisemitism in the kingdom, whether or not those incidents were motivated by religion or belief, and for reporting on the ability of Jews to exercise freedom of religion or belief, see the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.